

25STCV23072 25STCV23072

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Revised

Tentative Ruling

25STCV23072

GABRIEL

MORENO vs GARY R CARLIN, et al.

July

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

SPECIALLY APPEARING DEFENDANTS LAW OFFICES OF GARY R. CARLIN, APC AND GARY R.

CARLIN, ESQ.'S MOTION TO QUASH SERVICE OF SUMMONS.

RULING:

The Court grants the Motion,

without prejudice for Plaintiff to show proper service.

The Court quashes Service

of Summons as to Defendants LAW OFFICES OF GARY R. CARLIN, APC and GARY R.

CARLIN.

I.

BACKGROUND

On August 5, 2025, GABRIEL

MORENO (Plaintiff), a self-represented litigant, filed a Complaint against LAW

OFFICES OF GARY R. CARLIN, APC and GARY R. CARLIN, ESQ (Defendants).

On February 17, 2026,

Plaintiff filed the First Amended Complaint (FAC), listing Causes of Action

for:

1.

LEGAL MALPRACTICE (WITH TOLLING UNDER Code Civ. Proc., §340.6(a)(1), (a)(3))

2.

BREACH OF FIDUCIARY DUTY

3.

CONSTRUCTIVE FRAUD

4.

FRAUD – INTENTIONAL MISREPRESENTATION & INDUCEMENT

5.

NEGLIGENT MISREPRESENTATION

6.

BREACH OF CONTRACT

7.

BREACH OF THE COVENANT OF GOOD FAITH AND FAIR DEALING

8.

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

9.

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

10.

UNFAIR BUSINESS PRACTICES – BUS. & PROF. CODE § 17200 ET SEQ.

11.

FORGERY – COMMON LAW, PENAL CODE § 470, AND CIVIL CODE § 3294

12.

DECLARATORY RELIEF.

Plaintiff alleges that Defendants

failed to prosecute an underlying legal malpractice case and allowed it to be

dismissed pursuant to an Arbitration Award.

On May 27, 2026, Defendants

filed the Motion to Quash Service of Summons, on grounds including that Substituted

Service was invalid on both the entity and individual.

Plaintiff opposes, based upon

counterarguments such as that Substituted Service was valid as shown by a Registered

Process Server's declaration. Alternatively, Plaintiff requests the opportunity

to again serve the Summons.

The untimely Reply

objects to considering the unserved Opposition.

II.

LEGAL STANDARD

“'[C]ompliance with the

statutory procedures for service of process is essential to establish personal

jurisdiction.’” (Ellard v. Conway

(2001) 94 Cal.App.4th 540, 544. Accord,

Renoir v. Redstar Corp. (2004) 123 Cal.App.4th 1145, 1152.)

“When a defendant argues

that service of summons did not bring him or her within the trial court's

jurisdiction, the plaintiff has 'the burden of proving the facts that did give

the court jurisdiction, that is the facts requisite to an effective service.’”

(American Exp. Centurion Bank v. Zara (2011)

199 Cal.App.4th 383, 387.) Complainants have the initial burden to evidence

valid statutory service of a summons and complaint. (Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426,

1439-1440; Floveyor Internat. v. Superior

Court (1997) 59 Cal.App.4th 789, 794.)

Court findings as to

conflicting proof regarding whether a summons and complaint were properly

served are upheld if based upon substantial evidence. (Stafford v. Mach (1998) 64 Cal.App.4th 1174, 1182.)

A trial court has

discretion as to whether to accept a process server declaration, or

contradictory evidence, in deciding whether service of a summons and complaint

was validly accomplished. (Am. Express

Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390; Khourie, Crew & Jaeger v. Sabek, Inc.

(1990) 220 Cal.App.3d 1009, 1014 [“Sabek points out that it introduced

evidence, in the form of declarations, that tend to contradict the declaration

of Murray Woods.... The trial court, however, was entitled to believe Woods [the process server].") A filed proof of service creates a rebuttable presumption

that service was proper if it complies with applicable statutory requirements.

(Floveyor Internat. v. Superior Court

(1997) 59 Cal.App.4th 789, 795.) Where service was by a registered process

server, Evidence Code section 647 applies to accord a presumption as to the

facts stated in the proof of service. (Palm

Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419,

1425-1427.)

Code of Civil Procedure

"Section 415.20, subdivision (b), provides in part: 'If a copy of the summons

and complaint cannot with reasonable diligence be personally delivered to the

person to be served ... a summons may be served by leaving a copy of the summons

and complaint at the person's dwelling house, usual place of abode, usual place

of business, or usual mailing address other than a United States Postal Service

post office box, in the presence of a competent member of the household or a

person apparently in charge of his or her office, place of business, or usual

mailing address other than a United States Postal Service post office box, at

least 18 years of age, who shall be informed of the contents thereof, and by

thereafter mailing a copy of the summons and of the complaint by first-class

mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (Trackman v. Kenney (2010) 187

Cal.App.4th 175, 182-83. Accord American Exp. Centurion Bank v. Zara

(2011) 199 Cal.App.4th 383, 389. See

also generally Civ. Pro. Before Trial (The Rutter Group 2025) §4:206.)

“Substituted service is

valid only if a good faith, reasonable effort at personal service on the party

to be served is first attempted.” (Lebel v. Mai (2012) 210 Cal.App.4th

1154, 1164.)

Code of Civil Procedure

section 415.20, subdivision (a) permits substituted service on the person to be

served as to service of corporations as listed in Section 416.10, by leaving a

copy of the summons and complaint during usual office hours in the person's

office or, if no physical address is known, at his or her usual mailing

address. (Ramos v. Homeward Residential, Inc. (2014) 223 Cal.App.4th

1434, 1441.)

For invalid service, courts

may either extend time for service and issue an Order to Show Cause (OSC), or

dismiss the case without prejudice to

file another. “If a party fails to serve and file pleadings as required under

this rule, and has not obtained an order extending time to serve its pleadings,

the court may issue an order to show cause why sanctions shall not be imposed.”

(Cal. Rules of Court, rule

3.110(f).) “ ‘The court may dismiss without prejudice the complaint in whole,

or as to that defendant, when dismissal is made pursuant to Section 418.10.’ ”

(PNEC Corp. v. Meyer (2010) 190

Cal.App.4th 66, 71 [quoting Code Civ. Proc., § 581, subd. (h)], disapproved on other grounds by DisputeSuite.com, LLC v. Scoreinc.com

(2017) 2 Cal.5th 968, 979.)

III.

ANALYSIS

Defendants contend that

the Proof of Service of Summons was upon a paralegal who was not apparently in charge

and not authorized under Code of Civil Procedure section 416.10 to accept

service, and therefore service is invalid.

Plaintiff advocates that the

Summons was validly served upon the paralegal Daniel Hunt apparently in charge,

after unsuccessful attempts at service. (E.g., Opposition, 16th unnumbered page

(Plaintiff's Declaration), ¶ 8 (“Hunt was treated by the firm as operationally

essential to its litigation matters.”), 45th unnumbered page (Process Server La

Tasha Shareef Declaration), ¶ 4 (“He appeared to be in charge of the officer....”).)

The Reply, filed a day

before the hearing, objects that the Opposition is accompanied by no proof that

Defendants have been served such that they have had a sufficient opportunity to

file a Reply to the Opposition. On the merits, the Reply emphasizes that the

individual Defendant is not shown served in the Proof of Service, and the

entity was not served by anyone apparently in charge.

For valid substituted

service, there must be a finding that the person served was apparently in

charge and reasonably likely to deliver served documents to the intended

recipient, and process server declarations should contain basic facts

supporting that finding. (Chinese Theater, LLC v. Starline Tours USA,

Inc. (2025) 115 Cal.App.5th 1048, 1059.)

Here, the Proof of

Service of Summons, filed May 15, 2026, at paragraph 6, only states that the

entity was served, and leaves the "individual defendant" box unchecked. So, the

Court finds that service upon the individual is neither asserted in the Proof

of Service content, nor shown validly.

As for the individual and

the entity, the Court finds that the Process Server Declaration is conclusory

and fails to set forth facts supporting that the person appeared to be in

charge.

Therefore, the Court

finds that valid Service of Summons has not been competently proved as to

either Defendant.

IV.

CONCLUSION

The Court grants the Motion,

without prejudice for Plaintiff to show proper service.